

**CHAPTER xxvii.**

An Act for incorporating and conferring powers on the *Stourport Gas Company.* A.D. 1919.
[22nd July 1919.]

WHEREAS the Stourport Gas Coal and Coke Company Limited (in this Act referred to as "the limited company") were in the year eighteen hundred and sixty-five incorporated under the Companies Acts 1862 to 1890 for the purpose (amongst other things) of manufacturing and supplying gas at Stourport or elsewhere:

And whereas the capital of the limited company is six thousand six hundred pounds divided into one thousand three hundred and twenty shares of five pounds each the whole of which shares are fully paid up and the said company have not borrowed any sums on mortgage of their undertaking:

And whereas between the years nineteen hundred and eight and nineteen hundred and seventeen sums exceeding in the whole five thousand two hundred pounds were from time to time taken from undivided profits and expended in enlarging extending and improving the limited company's structural works plant and undertaking:

And whereas the limited company have also provided out of undivided profits and are now using the sum of three thousand four hundred pounds as working capital:

And whereas the limited company have caused a structural valuation to be made of the lands and of the works of manufacture storage and distribution erected thereon and of the mains meters stoves lamp-posts and services as fixed belonging to the limited company which valuation amounts to a sum exceeding twenty thousand pounds:

A.D. 1919.

And whereas it is reasonable that shares in the Company representing the sums so expended on the undertaking as aforesaid should be created and should be distributed rateably amongst the present members of the limited company in the manner and under the conditions in this Act prescribed and set forth:

And whereas the limited company are not at present subject to any restriction as to the dividends to be paid to the members of the limited company and it is expedient that the dividends payable on the capital of the Company authorised by this Act should be subject to the restrictions in this Act contained:

And whereas the demand for gas in the urban district of Stourport supplied by the limited company and in the neighbourhood thereof has increased and is increasing and it is expedient that the works and mains of the limited company should be extended and improved and that additional capital should be raised for such extension and improvement:

And whereas it is expedient that the limited company should be dissolved and re-incorporated with further powers and should be authorised to supply gas within the limits defined by this Act:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title.

1. This Act may be cited as the Stourport Gas Act 1919.

Incorporation of Acts.

2.—(1) The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely):—

(a) The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement):

(b) The Companies Clauses Acts 1845 to 1889 (except the provisions with respect to the conversion of borrowed

money into capital and except Part IV. of the A.D. 1919.
Companies Clauses Act 1863):

(c) The Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) Provided that section 13 of that Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section and that section 35 of that Act shall be read as if the words from "in case the whole" to "have been paid" were omitted therefrom and as if the expression "the prescribed rate" included the rate of dividend authorised by this Act or such rate as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the special purposes fund:

(d) The Gasworks Clauses Act 1871 except section 1 of Part I. and section 1 of Part II. of Schedule A. thereto Provided that the Act shall be read as if—

(i) In section 12 the words "quality of the" and the words "with respect to its illuminating power be such as to produce at the testing-place provided in conformity with this Act a light equal in intensity to that produced by the prescribed number of sperm candles of six in the pound and such gas shall" were omitted;

(ii) In sections 28 29 30 and 33 the words "calorific power" were inserted in lieu of the words "illuminating power";

(iii) In section 36 the words "of less illuminating power" were omitted.

(2) The provisions of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 incorporated with this Act shall apply as well to the pipes and works of the Company laid down or constructed before the passing of this Act as to any pipes or works which may be laid down or constructed under the authority of this Act.

A.D. 1919.

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

“The Company” shall mean the Company incorporated by this Act;

“The undertaking” shall include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvement thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively;

“Calorific power” means the total heat value expressed in British thermal units;

“British thermal units” means British thermal units gross per cubic foot of gas.

Limits of
Act.

4. The limits of this Act shall be the urban district of Stourport the parishes of Hartlebury and Ombersley in the rural district of Droitwich and the parishes of Astley and Areley Kings in the rural district of Martley all in the county of Worcester.

INCORPORATION OF COMPANY.

Incorpora-
tion of Com-
pany.

5. From and after the passing of this Act the limited company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes hereinafter mentioned and shall be and are hereby incorporated by the name of “The Stourport Gas Company” and by that name shall be a body corporate with perpetual succession and a common seal with power to purchase take hold and dispose of lands and other property for the purposes of this Act or of their undertaking.

General pur-
poses of
Company.

6. The Company shall be established for the purposes of acquiring maintaining altering improving extending and enlarging the gasworks of the limited company and of manufacturing and

supplying gas for lighting heating motive power and other purposes within the limits of this Act. A.D. 1919.

7. Subject to the provisions of this Act all the lands gasworks erections buildings interests rights and easements and other the undertaking which immediately before the passing of this Act were vested in the limited company or any person in trust for them or to which the limited company were in any-wise entitled and all mains and pipes plant plugs lamps retorts gauges meters lamp-posts syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Present property of limited company vested in Company.

8. Subject to the provisions of this Act the memorandum and articles of association of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

Memorandum and articles of association of limited company to be void.

A.D. 1919.

Nothing to
affect pre-
vious rights
and liabili-
ties.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company (as the case may be) and the generality of this enactment shall not be restricted by any of the other provisions of this Act.

Contracts
prior to Act
to be binding.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or the trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.
not to abate.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the

limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and their members respectively. A.D. 1919.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement. Trustees of limited company to be indemnified.

13. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf. Company to satisfy liabilities of limited company.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act. Recovery of gas rents &c.

15. All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company. As to payment of debts owing before passing of Act.

A.D. 1919.
Certificates
&c. to remain
in force.

16. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed for or with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if the said memorandum and articles of association had not been avoided.

Books &c.
continued
evidence.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers to
continue until
removed.

18. All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Present
register of
shareholders
to be con-
tinued.

19. The books kept by the limited company for entering the names and designations of the members thereof with the numbers of their shares shall until a register of stockholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of holders of consolidated stock required to be kept by the Companies Clauses Consolidation Act 1845.

For pro-
tection of
Droitwich
Rural Dis-
trict Council.

20. For the protection of the Droitwich Rural District Council (in this section called "the council") the following provisions shall unless otherwise agreed in writing between the Company and the council apply and have effect:—

- (1) The Company shall not supply gas within the parish of Ombersley for a period of two years after the passing of this Act and if within the said period the council shall have agreed with the mayor aldermen and burgesses of the borough of Droitwich for a supply of gas to be furnished by them for public and private purposes to the said parish by the expiration of the said period the powers and obligations of the

Company with regard to the supply of gas in that parish shall cease : A.D. 1919.

- (2) Notwithstanding anything contained in section 10 of the Gasworks Clauses Act 1847 the Company shall when they open or break up the road or pavement of any street or bridge of the council reinstate and make good the same and keep the road or pavement which has been so broken up in good repair for twelve months after replacing and making good the same.

CAPITAL.

21.—(1) The capital of the Company shall be thirty-nine thousand eight hundred pounds divided as follows:—

- (a) Nineteen thousand eight hundred pounds of ordinary stock (in this Act called “the original capital”) to be divided among the holders of shares in the limited company in manner hereinafter provided :
(b) Twenty thousand pounds (in this Act called “the additional capital”) to be raised in manner hereinafter provided.

(2) The Company may convert into stock the whole or any part of the additional capital when fully paid up.

22.—(1) The original capital shall be vested in the several persons who immediately before the passing of this Act were the registered members of the limited company fifteen pounds of stock in such capital being substituted for every share of five pounds in the capital of the limited company. Vesting of original capital in present shareholders.

(2) Upon the passing of this Act there shall be created by virtue of this Act sufficient ordinary stock to give effect to the provisions of this section.

(3) The stock vested by this section shall be subject to the same liability for calls and be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before the passing of this Act affected the shares or share for which the same is substituted.

(4) The Company shall call in and cancel the existing certificates of shares in the limited company and shall issue in lieu thereof to every shareholder a new certificate for the amount of ordinary stock held by him but the holders of such existing

A.D. 1919. certificates of shares shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof.

(5) Every new certificate issued in pursuance of this section shall be issued free of charge.

(6) Subject to the provisions of this Act the provisions of the Companies Clauses Consolidation Act 1845 with respect to the consolidation of shares into stock (except section 61 (Transfer not to be made until calls paid) of that Act) shall extend and apply to the ordinary stock created by virtue of this section.

Multiples of stock.

23.—(1) Any transfer of ordinary stock may be in multiples of one pound so long as by such transfer no holding of any stockholder of the Company is rendered less than five pounds of stock.

(2) Notice of the effect of this section shall be stated in all stock certificates.

Power to raise additional capital.

24. The Company may from time to time raise additional capital not exceeding in the whole twenty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than five pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that the Company shall not create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of twenty thousand pounds and the Company shall not raise a greater amount than ten thousand pounds of such additional capital by the creation and issue of new preference shares or stock.

New stock to be sold by auction or tender.

25.—(1) All stock created as additional capital under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All such stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:— A.D. 1919.

(a) Notice of the intended sale shall be given in writing to the clerk of each district council whose district or any portion of whose district is within the limits of this Act and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of this Act:

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be disposed of by the directors at a price not less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at the reserve price to the holders of ordinary and preference stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company

A.D. 1919. — may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold may be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of stock.

Power to borrow.

26.—(1) The Company may at any time after the passing of this Act borrow on mortgage of the undertaking in respect of the original capital any sum or sums not exceeding in the whole six thousand six hundred pounds.

(2) In addition to the money which the Company are authorised to borrow under the foregoing provisions of this section they may borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock forming part of the additional capital at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under section 40 (Evidence of authority for borrowing) of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid

has been given which certificate shall be sufficient evidence thereof. A.D. 1919.

(3) Any sums which shall be received upon the issue of shares or stock by way of premium shall be deemed to be part of the additional capital of the Company for the purposes of this section.

27. All mortgages and rentcharges granted by the limited company before and subsisting at the passing of this Act shall during the continuance of such mortgages and rentcharges have priority over all mortgages and debenture stock granted or created and issued by virtue of this Act. Priority of existing mortgages.

28.—(1) The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. For appointment of a receiver.

(2) In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole.

29.—(1) The Company may create and issue debenture stock subject to the provisions of Part III. (Debenture Stock) of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Debenture stock.

(2) Notice of the effect of this section shall be endorsed on all mortgages and certificates of debenture stock.

30. All money to be raised by the Company on mortgage under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted Priority of mortgages and debenture stock over other debts.

A.D. 1919. by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Application
of moneys.

31. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Act and to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

LIMITATION OF PROFITS.

Profits of
Company
limited.

32.—(1) The profits of the Company to be divided among the holders of such of the additional capital to be raised under the powers of this Act as shall be issued as preference capital shall not in any year exceed the rate of six pounds in respect of every one hundred pounds actually paid up of such capital.

(2) Except as by this Act provided the profits of the Company to be divided among the holders of ordinary capital shall not in any year exceed the following rates (which are in this Act referred to as "the standard rates of dividend") (that is to say):—

On the original capital the rate of five pounds in respect of every one hundred pounds of such capital;

On such of the additional capital to be raised under the powers of this Act as shall be issued as ordinary capital the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital.

Dividends on
different
classes of
ordinary
capital to be
paid propor-
tionately.

33. In case in any year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the authorised rate on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

Power to
create a
special pur-
poses fund.

34.—(1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up

capital of the Company including premiums to a fund to be called "the special purposes fund." A.D. 1919.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

35. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and the dividend on the ordinary capital at the authorised rates the excess or such portion of it as is not carried to the special purposes fund shall be carried to the credit of the divisible profits of the undertaking for the next following year. Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend at the authorised rate.

Application
of excess of
profits over
authorised
dividend.

36. When in any year the dividend on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess

Reserve
fund.

A.D. 1919. of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the limited company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

MEETINGS DIRECTORS &C.

Ordinary
meetings.

37. The first ordinary meeting of the Company shall be held within nine months after the passing of this Act and the subsequent ordinary meetings of the Company shall be held once in every year in the month of February or March or at such other time as shall be appointed for that purpose by an order of a general meeting.

Number of
directors.

38. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than five or less than three.

Qualification
of directors.

39.—(1) For the period of one year after the passing of this Act the qualification of a director shall be the possession in his own right of not less than one hundred pounds in the ordinary capital of the Company and thereafter the qualification of a director shall be the possession in his own right of not less than two hundred pounds in the ordinary capital of the Company.

(2) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for three months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

(4) Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director interested in any such contract shall as a director vote in respect of that contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity. A.D. 1919.

40. The quorum of a meeting of directors shall be three provided that when the number of directors does not exceed three the quorum shall be two. Quorum.

41. The directors of the limited company namely Arthur Branston Constantine Charles Henry Munn Harry Silk and Arthur Sydney Foster shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act. First directors.

42.—(1) At the first ordinary meeting held after the passing of this Act the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election. Election of directors.

(2) At the first ordinary meeting to be held in every year after the first the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for

A.D. 1919. — varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are duly elected in their stead.

(3) Provided that no person not being a director appointed by this Act or a retiring director shall be eligible to be elected a director unless notice in writing be given to the secretary of the Company or left at the principal office of the Company ten days at least before the day of election that such person will be proposed to be elected a director and the secretary of the Company shall during such ten days and on the day of election fix a copy of every such notice in some conspicuous place in such office.

As to
appointment
of managing
director.

43.—(1) The directors of the Company may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director for any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of these modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

Power to
directors to
determine
remuneration
of secretary.

44. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company.

45. The quorum of all general meetings whether ordinary or extraordinary shall be five shareholders present in person and holding or representing by proxy not less in the aggregate than one tenth part of the ordinary capital of the Company for the time being issued.

A.D. 1919.

Quorum of
meetings of
Company.

46.—(1) Except as hereinafter provided every holder of stock or shares in the capital of the Company shall be entitled to one vote for every complete fifteen pounds of stock or every three shares of five pounds held by him.

Scale of
voting.

(2) No such holder shall be entitled to vote at any meeting in respect of any stock or shares that he has acquired by transfer unless he has been possessed of such stock or shares for at least three months previously to the time of holding the meeting.

(3) No person shall be entitled to vote in respect of any preference stock unless it is otherwise expressly provided by the resolution creating such preference stock.

47.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting. Provided that if the Company think fit a firm may be appointed auditors.

Number and
qualification
of auditors.

(2) The auditor or auditors appointed by the Company shall be a member or members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade and need not hold shares or stock of the Company.

48. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company. Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any half-year one half of the amount of the authorised dividend.

Interim divi-
dend.

49. The directors may close the register of transfers for a period not exceeding fourteen days previous to a declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is

Closing of
transfer
books pre-
vious to
declaring
interim divi-
dend.

A.D. 1919. situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Books to be
balanced to
31st Decem-
ber.

50. The period to which the books of the Company shall be balanced shall be the thirty-first day of December in each year.

Receipt in
case of per-
sons not sui
juris.

51. If any money is payable to a shareholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

WORKS AND LANDS.

Powers as to
maintenance
of gasworks.

52.—(1) Subject to the provisions of this Act the Company may maintain alter improve enlarge extend and renew or discontinue the existing gasworks upon the lands described in the schedule to this Act and may also upon those lands erect maintain alter improve and renew or discontinue additional and other gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of this Act.

(2) The Company may also upon the said lands—

(a) Work up and convert the residual products arising directly or indirectly from the manufacture of gas by them :

(b) Purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Company are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Company in any year shall not exceed one third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them :

(c) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid :

But the Company shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Company or purchased from other gas undertakings is merely subsidiary. A.D. 1919.

53. The Company may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 (Not to enter on private land without consent) of that Act were excepted from incorporation in this Act. Power to lay pipes in private streets.

54. The Company may lay down and repair take up alter relay or renew mains pipes and culverts within the limits of this Act for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Power to utilise pipes for ancillary purposes.

55. The Company may for the purposes of their undertaking purchase take on lease and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole three acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act. Power to purchase lands by agreement Gas not to be manufactured except on lands scheduled.

56. The Company may sell or lease any lands vested in or acquired by them under the powers of this Act and not for the time being required for the purposes of their undertaking. Sale or lease of lands not required.

57. For the protection of the urban district council of Stourport (in this section called "the council") the following provisions shall unless otherwise agreed between the Company For protection of Stourport Urban District Council.

A.D. 1919. and the council have effect within the urban district of Stourport
(that is to say):—

- (1) Whenever it shall be found necessary by the Company to break up any street not dedicated to public use in which is laid any pipe drain sewer tunnel or other work vested in the council the like notice and plan as are respectively required by sections 8 and 9 of the Gasworks Clauses Act 1847 to be given or sent to the persons having the control or management of any street shall be given and sent to the council and if the council notify in writing to the Company that any such pipe drain sewer tunnel or other work will or may be affected by the operations proposed to be carried out by the Company in such street the provisions of the said Act shall apply for the protection of such pipe drain sewer tunnel or other work and of the council in reference thereto as though the council were persons having the control and management of such street within the meaning of the said Act and in particular the Company shall cause danger lights to be placed at night at the end and by the side of any breaches which may be dug and temporarily left open in or across any such street so that all such lights are kept burning from one hour after sunset to one hour before sunrise whilst the said breaches remain open so as effectually to warn the traffic passing in the said street:
- (2) All pipes to be laid in along or across any street or in along or across any bridge vested in or repairable by the council shall be laid in such position in or at the side thereof as the council in writing under the hand of their surveyor may reasonably direct:
- (3) The Company shall not open a greater continuous length of street than one hundred yards nor shall they leave a less space than fifty yards between any two consecutive openings and they shall not open a greater length than fifty yards at any place where such opening would leave insufficient space for the passage of two vehicles abreast:
- (4) In the application of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of

streets for the purpose of laying pipes the notice required by section 8 of that Act shall (except in cases of emergency in which cases the earliest possible notice shall be given) be not less than seven days instead of three days: A.D. 1919.

- (5) The plan required by section 9 of the last-mentioned Act shall be accompanied by a section of the proposed works and shall be delivered by the Company to the council or their surveyor not less than seven days before they commence to open or break up any road or interfere with any bridge vested in or repairable by the council:
- (6) Nothing in this Act contained shall interfere with the right of the council to alter the line or level of or improve in any manner they think fit any street in or along which any pipes of the Company shall have been laid and the Company shall on the expiration of fourteen days after receiving notice in writing under the hand of the clerk or surveyor to the council so to do proceed to alter the position of any such pipes in the manner and to the extent prescribed by such notice or in case of difference determined by arbitration in the manner hereinafter prescribed and the expenses of any such alteration shall be paid to the Company by the council:
- (7) All works of the Company so far as they affect any streets and bridges shall be so executed by the Company as not so far as reasonably practicable in any way to impede or interfere with the traffic on any road or over any bridge or the approaches thereto:
- (8) Any difference under this section shall be referred to and determined by an engineer to be appointed by agreement between the Company and the council or failing such agreement by the President of the Institution of Civil Engineers on the application of either party and the provisions of the Arbitration Act 1889 shall apply to any such reference.

58. For the protection of the Great Western Railway Company (in this section referred to as "the Great Western Company") the following provisions shall unless otherwise

For protection of Great Western Railway Company.

A.D. 1919. agreed between the Great Western Company and the Company
— apply and have effect (that is to say):—

(1) In constructing laying down and executing and also (except in cases of emergency) in effecting the repairs or renewals of any mains pipes or other works of the Company laid under the powers of this Act which may be situate upon across over under or in any way affecting the railway lands roads or property belonging to or occupied by the Great Western Company the same shall be done by and in all things at the expense of the Company and under the superintendence (if same be given) and to the reasonable satisfaction of the principal engineer of the Great Western Company and at such time or times as he shall reasonably approve and so as not to interfere with the structure of such railway and except as aforesaid and except in cases of repair according to plans sections and particulars to be submitted to and reasonably approved by the said engineer before any such works shall be executed Provided that if the said engineer shall not signify his approval or disapproval of such plans sections and particulars within twenty-eight days after they shall have been submitted to him he shall be deemed to have approved thereof:

(2) The Company shall restore and make good to the reasonable satisfaction of the said engineer the railway works and property of the Great Western Company and the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing to the extent to which the same are maintained by the Great Western Company so far as the same may be disturbed or interfered with by or owing to any of the operations of the Company under the powers of this Act Provided that if the Great Western Company so elect they may themselves execute and maintain all such works and may recover the reasonable cost of so doing from the Company (including compensation payable to any workmen or their legal representatives or dependents who may be injured or killed whilst employed by the Great Western Company in and about such works):

- (3) All such works shall be constructed executed and maintained so as to cause as little injury or damage as may be to the railway works and property of the Great Western Company and no interruption to the passage or conduct of traffic over such railway or at any station thereon and if any such injury damage or interruption shall arise from the acts operations or things aforesaid or by reason of the failure of the Company to maintain such works or the leakage or failure of any main pipe or work of the Company under or near to any railway work or property of the Great Western Company all such injury or damage shall forthwith be made good by the Company at their own expense and to the reasonable satisfaction of the said engineer and the Company shall indemnify the Great Western Company from all claims in respect of any such injury damage or interruption and shall make compensation to the Great Western Company for and in respect thereof including compensation payable to any workmen or their legal representatives or dependents : A.D. 1919.
- (4) In the event of the Company failing to make good such injury or damage as aforesaid or failing to maintain all such works (where they pass under over or in any way affect the railway works or property of the Great Western Company) in substantial repair and good order to the reasonable satisfaction in all respects of the said engineer or in case of emergency the Great Western Company may make good the same and make and do in and upon as well the lands of the Company as their own lands all such repairs and things as may be reasonably requisite and recover any expense reasonably and properly incurred in that behalf (including compensation payable to any workmen or their legal representatives or dependents) from the Company :
- (5) The Company shall bear and on demand pay to the Great Western Company the reasonable expenses (including compensation payable to any workmen or their legal representatives or dependents who may be injured or killed whilst employed by the Great Western Company in and about such works) of the

A.D. 1919.

employment by them during the execution by the Company of any works under the powers of this Act over under or across the railway and works of the Great Western Company of a sufficient number of inspectors signalmen or watchmen to be appointed by the Great Western Company for watching and protecting the said railway and works and the conduct of the traffic thereon with reference to and during the execution of the said works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person or persons in the employ of the Company or their contractors in reference thereto:

- (6) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railway or to extend alter or repair their railway bridges viaducts works or property upon across over or under which any of the works of the Company have been constructed or laid under the powers of this Act the Great Western Company may after giving to the Company fourteen days' notice in writing under the hand of their secretary or general manager or in case of emergency after giving such notice as is possible divert support or carry the said works of the Company across over or under their lands railway bridges works or property at any other point or otherwise deal with the same in as convenient a manner as circumstances will permit and doing as little damage as may be and so as not to interrupt or interfere with the supply of gas more than may be necessary without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works:
- (7) Any additional expense which the Great Western Company may reasonably and properly incur in widening altering reconstructing repairing or maintaining their railway bridges or works under their existing powers by reason of the existence of any mains pipes or other works of the Company laid or executed under the powers of this Act upon across

over or under the same shall be paid by the Company : A.D. 1919.

- (8) Any difference arising between the Company and the Great Western Company respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be appointed failing agreement at the request of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

SUPPLY OF GAS.

59. The standard prices to be charged by the Company for gas supplied by them within a radius of one and a half miles from their existing gasworks shall be four shillings and sixpence per thousand cubic feet and for gas supplied beyond that radius five shillings per thousand cubic feet Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows:— Sliding scale.

- (1) In respect of any year during any part of which the price charged by the Company within a radius of one and a half miles from their existing gasworks shall have been one penny or part of a penny above the standard price of four shillings and sixpence or the price charged by the Company for gas supplied beyond that radius shall have been one penny or part of a penny above the standard price of five shillings the dividend payable by the Company shall in respect of each penny or part of a penny by which either of the standard prices shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a five per centum per annum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum per annum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

A.D. 1919.

(2) And in respect of any year during the whole of which the price charged by the Company within a radius of one and a half miles from their existing gasworks shall have been one penny or more below the standard price of four shillings and sixpence and the price charged by the Company for gas supplied beyond that radius shall also have been one penny or more below the standard price of five shillings the dividend payable by the Company may in respect of each penny by which both the standard prices shall have been reduced be increased above the standard rate by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital with a five per centum per annum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum per annum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

Minimum
charge for
gas laid on
to premises
having a
supply of
electricity or
power gas.

60. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes (not being domestic purposes) the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of less than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Testing-
place.

61. For the purposes of the Gasworks Clauses Act 1871 as varied by this Act the prescribed testing-place shall be a testing-place which shall be provided by the Company within three months after the passing of this Act on any of the lands described in the schedule to this Act.

62.—(1) Within three months from the passing of this Act the Company shall provide and thereafter maintain at the prescribed testing-place apparatus for testing the calorific power of the gas supplied by them. The apparatus shall be such as may from time to time be agreed upon between the Company and the Stourport Urban District Council and shall be used in the mode and under the conditions set forth in the agreement. Failing such agreement the apparatus shall be such as may be prescribed by a gas engineer to be appointed on the application of the Company or the said council by the President of the Institution of Civil Engineers and shall be used in the mode and under the conditions for the time being prescribed by the said engineer.

A.D. 1919.

Testing for
calorific
power.

(2) The gas supplied by the Company shall when tested in accordance with the provisions of this Act be of a calorific power of five hundred British thermal units and that power is in this Act referred to as “the standard calorific power.”

63.—(1) Not more than one testing for calorific power shall be made on any one day. Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

Provisions as
to testing
for calorific
power.

(2) The gas examiner shall forthwith deliver a report of the result of his testing to the Company and that report shall be receivable in evidence.

64. If on any testing the calorific power of the gas supplied by the Company is found to be below the standard calorific power they shall be liable to the following penalties in respect of such deficiency (that is to say):—

Penalties for
deficient
calorific
power.

If the deficiency does not exceed fourteen British thermal units a sum not exceeding forty shillings:

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds:

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

65.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than two inches in height at the

Pressure of
gas.

A.D. 1919. main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing-place or at any public lamp or on the premises of the Great Western Railway Company at the inlet of the primary meter or meters registering the supply to such Company as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

Revision of
standard
calorific
power or
pressure.

66. If within one month after the expiration of five years from the coming into operation of the provisions of this Act relating to calorific power or after any subsequent period of five years the Company or any local authority or person who may appear to the Board of Trade to have a substantial interest in the matter apply to the Board of Trade to reduce or increase the standard calorific power or the pressure prescribed by this Act the Board of Trade after hearing the parties and any other persons who appear to the said Board to be interested may make such reduction or increase of the standard calorific power or of the prescribed pressure as they think fit.

Saving as to
penalties.

67. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which the gas examiner shall report or the court having cognisance of the case shall be of opinion that such insufficiency defect or excess was occasioned by unavoidable cause or accident or by any circumstance beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

As to con-
struction and
placing of
pipes &c.
between
mains and
meters.

68. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof (so far as such pipes or fittings are intended to be covered over) which are to be laid by the consumer on his premises either in the first instance or on the occasion of any renewal:

- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time: A.D. 1919.
- (3) The specification shall be published twice in some newspaper circulating within the limits of this Act and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Company refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

69.—(1) The Company may purchase sell let for hire or otherwise deal in fix repair and remove (but shall not manufacture) engines stoves ranges pipes and other fittings for Power to supply gas fittings.

A.D. 1919. lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be and all fittings let for hire as aforesaid notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises shall at all times continue to be the property of and removable by the Company provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

(3) Nothing in this section shall affect the amount of assessment for rating of any premises upon which any fittings are or shall be fixed.

Anti-fluctuators for gas engines.

70. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper order and if any consumer shall make default in complying with the provisions of this section the Company may cease to supply him with gas. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of such consumer.

Company to pay interest on money deposited as security.

71. If any person is required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is given by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings

deposited by way of such security for every six months during A.D. 1919. which the same remains in their hands.

72.—(1) Twenty-four hours' notice in writing shall be given to the Company by every gas consumer either personally at the office of the Company or in writing before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur.

Gas consumers to give notice to Company before removing.

(2) Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

73. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Notice of discontinuance.

74. If a person requiring a supply of gas for any premises occupies or has occupied other premises at which gas was supplied to him by the Company and has not paid all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse supply to persons in debt for other premises.

75.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

Period of error in defective meters.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

76.—(1) In any case in which the Company are by virtue of any enactment relating to their gas undertaking authorised to cut off and discontinue the supply of gas to any premises in

As to mode of cutting off supplies.

A.D. 1919. consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 (Penalty for fraudulently using the gas of the undertakers) of the Gasworks Clauses Act 1847:

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 (Undertakers to furnish sufficient supply of gas to owners and occupiers within the limits of the special Act) of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 (Power to remove meter and fittings) of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exercisable under the said section 22 for the purposes of that section.

Occupier to
pay expenses
of re-connec-
ting discon-
nected
supply.

77. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (whether under the existing powers of the Company or under the powers conferred by this Act) and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of reconnecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Power to
enter pre-
mises and
remove
fittings.

78. The power to enter premises and to remove pipes meters fittings or apparatus conferred on the Company by section 22 (Power to remove meter and fittings) of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

79. The Company may contract with any local authority company or persons beyond the limits of this Act (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon but nothing in this section shall authorise the Company to lay mains or interfere with any street beyond the limits of this Act.

A.D. 1919.

Company
may contract
for supply
in bulk.

MISCELLANEOUS.

80. The Company may purchase or take on lease and upon the lands for the time being belonging or leased to the Company erect and maintain dwelling-houses for persons in their employment. Provided that nothing contained in this Act shall exempt any dwelling-houses erected under the powers of this section from the building byelaws for the time being of the local authority within whose district such houses are erected.

Dwelling-
houses for
persons in
Company's
employmen

81. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke tar pitch asphaltum ammoniacal oil and the products from coal and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto but not so as to acquire any exclusive right to the working use exercising or putting in practice of any such invention.

Power to
take licences
for use of
patents.

82.—(1) The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily.

Copy of Act
to be regis-
tered.

A.D. 1919.

(2) There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum of association.

Authentica-
tion and
service of
notices by
Company.

83. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised by the directors thereof being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Recovery
of demands.

84. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
penalties &c.

85. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Several sums
in one sum-
mons.

86. Where the payment of more than one sum by any person is due under this Act any summons or warrant issued

for the purposes of this Act in respect of that person may A.D. 1919.
contain in the body thereof or in a schedule thereto all the
sums payable by him.

87. Nothing in this Act shall exempt the Company or Saving as to
general Acts.
their undertaking from the provisions of any general Act
relating to the supply of gas which may be passed in this or
any future session of Parliament.

88. All costs charges and expenses of and incident to the Costs of Act.
preparing for obtaining and passing of this Act or otherwise
in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

GAS LANDS.

All that piece of land with gasworks erected thereon containing
5,643 square yards or thereabouts situate in Cheapside in the parish
of Lower Mitton in the urban district of Stourport bounded on the
north-east by streets known as Cheapside and Severn Road and a
footpath belonging or reputed to belong to the Staffordshire and
Worcestershire Canal Company on the south-west by the towpath of the
River Severn on the south-east by Cheapside aforesaid and on the
north-west by land belonging or reputed to belong to the Staffordshire
and Worcestershire Canal Company.

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